

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rolando Vasquez	Team: Squad #05	CCRB Case #: 201801182	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 02/10/2018 9:36 PM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 8/10/2019	Precinct: 30
Date/Time CV Reported Sat, 02/10/2018 10:44 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 02/10/2018 10:44 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Breanne Barrett	27533	954523	NARCBMN
2. SGT Michael Pomerantz	04481	947364	GANG MN
3. POM Daniel Callinan	17721	945542	GANG MN

Officer(s)	Allegation	Investigator Recommendation
A . SGT Michael Pomerantz	Abuse: Sergeant Michael Pomerantz stopped § 87(2)(b)	A . Unsubstantiated
B . SGT Michael Pomerantz	Abuse: Sergeant Michael Pomerantz searched § 87(2)(b)	B . Substantiated
C . SGT Michael Pomerantz	Force: Sergeant Michael Pomerantz used physical force against § 87(2)(b)	C . Unsubstantiated
D . POM Daniel Callinan	Abuse: Police Officer Daniel Callinan frisked § 87(2)(b)	D . Unsubstantiated
E . POM Daniel Callinan	Abuse: Police Officer Daniel Callinan searched § 87(2)(b)	E . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

This complaint was filed by § 87(2)(b) with the CCRB by phone on February 10, 2018.

On February 10, 2018, at approximately 9:36 p.m., § 87(2)(b) was walking in the vicinity of § 87(2)(b) in Manhattan. § 87(2)(b) was stopped by Sgt. Michael Pomerantz and PO Breanne Barrett from Manhattan North Gang Squad on the authority of Sgt. Pomerantz (**Allegation A – Abuse of Authority, unsubstantiated**). Sgt. Pomerantz searched § 87(2)(b) (**Allegation B – Abuse of Authority, substantiated**). Sgt. Pomerantz allegedly pulled § 87(2)(b) to the ground (**Allegation C – Force, unsubstantiated**). PO Daniel Callinan, also from Manhattan North Gang Squad, allegedly frisked and searched § 87(2)(b) (**Allegation D-E – Abuse of Authority, unsubstantiated**). § 87(4-b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

No arrests or summonses resulted from this incident.

Video footage was obtained of this incident (BR01-02).

Findings and Recommendations

Allegation A – Abuse of Authority: Sergeant Michael Pomerantz stopped § 87(2)(b)

Allegation B – Abuse of Authority: Sergeant Michael Pomerantz searched § 87(2)(b)

It is undisputed that § 87(2)(b) was stopped and searched by Sgt. Pomerantz. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b) testified that he left from his home at § 87(2)(b) § 87(2)(b) walked southbound on the west side of Broadway toward a restaurant at § 87(2)(b), purchased food, and started back toward his home northbound on the west side of Broadway (BR03). Sgt. Pomerantz appeared, showed § 87(2)(b) his badge, and told § 87(2)(b) that he wanted to check him. § 87(2)(b) was interviewed at the CCRB in Spanish because he stated he does not speak English well and had trouble conversing with the officers who did not appear to speak Spanish. § 87(2)(b) told the officers that he did not care and had not done anything wrong. Sgt. Pomerantz searched the interior of § 87(2)(b)'s jacket pockets. § 87(2)(b) said, "Hold it, hold it, hold it." § 87(2)(b) was ultimately released with no arrest, summons, or explanation for why he was stopped.

Video footage was retrieved from a Dunkin Donuts located at § 87(2)(b), a clip of which is embedded below (BR02, 04). In the clip, § 87(2)(b) appears walking northbound on Broadway carrying a plastic bag right before he is stopped at approximately 9:36 p.m. The stop is not visible on this camera. Footage from the Dunkin Donuts starting at 9:00 p.m. was obtained. § 87(2)(b) is not seen walking southbound on Broadway towards the restaurant § 87(2)(b) reported he went to.



201801182_20180412_0858_DM.mp4

Sgt. Pomerantz testified that he was conducting a surveillance operation involving § 87(2)(b) via surveillance cameras from the building that transmitted to his department cell phone (BR05). Sgt. Pomerantz watched the video on his cell phone from his car which was parked near Broadway. From the video feed on his phone, Sgt. Pomerantz observed § 87(2)(b) engage in a hand-to-hand drug transaction in which he purchased crack vials from a known drug dealer in exchange for US currency. Based on this observation, Sgt. Pomerantz made the determination to stop § 87(2)(b) § 87(2)(e). § 87(2)(b) put the crack vials into one of his jacket pockets and left the building. § 87(2)(b) was not stopped immediately after he left the building so as not to alert others that the location was under surveillance. § 87(2)(b) entered a store where he spoke with an unknown individual. Sgt. Pomerantz lost sight of § 87(2)(b) for a couple minutes when he entered the store. § 87(2)(b) was eventually stopped based on the observed drug transaction. Sgt. Pomerantz searched the pocket in which § 87(2)(b) had placed the crack vials. Sgt. Pomerantz did not find the crack vials. Sgt. Pomerantz searched § 87(2)(b) solely to recover the crack vials and never searched him to recover a weapon. Sgt. Pomerantz did not think that he ever frisked § 87(2)(b). No stop, question, and frisk report was prepared. No documentation was generated regarding the surveillance operation that the officers were working on prior to this incident other than memo book entries. Video footage associated with the surveillance operation was not saved by the gang squad.

PO Barrett and PO Callinan testified they did not observe the alleged drug transaction and that they were merely informed that it had occurred by Sgt. Pomerantz (BR06-07).

The investigation attempted to obtain video footage from the building identified by Sgt. Pomerantz where the alleged drug transaction occurred, § 87(2)(b), but yielded negative results (BR08).

A stop may be conducted when an officer possesses reasonable suspicion that a person has committed, is committing, or is about to commit a crime: NYPD Patrol Guide Procedure 212-11; People v. De Bour, 40 N.Y.2d 210 (1976) (BR09-10). A frisk is authorized when the officer reasonably suspects that the person is armed and dangerous. A frisk may not be conducted to discover evidence or the proceeds or instrumentalities of a crime. A search of the interior of pockets may be conducted when an object an officer reasonably suspects is a weapon or other dangerous item is discovered during a frisk.

§ 87(2)(g)
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Therefore, it is recommended that **Allegation A** be closed **unsubstantiated**.

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **substantiated**.

Allegation C – Force: Sergeant Michael Pomerantz used physical force against § 87(2)(b)

§ 87(2)(b) testified that after Sgt. Pomerantz searched his jacket pockets, Sgt. Pomerantz suddenly grabbed § 87(2)(b) by the chest and left arm and pulled him to the ground. § 87(2)(b) had not been making any movements. § 87(2)(b) was handcuffed on the ground.

Sgt. Pomerantz testified that he approached § 87(2)(b) to stop him. § 87(2)(b) was immediately agitated, questioned why he was being stopped in a loud voice, and said other things in Spanish that Sgt. Pomerantz did not understand. § 87(2)(b) inserted and removed his hands from his pockets repeatedly and was repeatedly told to stop doing so. § 87(2)(b) removed his hands from his pockets and was waving them in front of Sgt. Pomerantz's face unpredictably as he continued speaking in a more agitated tone. Sgt. Pomerantz told him that if he did not stop then he would be placed in handcuffs. § 87(2)(b) persisted. Sgt. Pomerantz grabbed § 87(2)(b)'s hand, intending to handcuff him for his safety. § 87(2)(b) pulled away. Sgt. Pomerantz pulled § 87(2)(b) to the ground to handcuff him more safely.

PO Barrett also described that § 87(2)(b) was moving his hands in and out of his pockets and then in front of him while Sgt. Pomerantz was speaking with him. PO Barrett's testimony was generally less detailed regarding the incident because she did not recall the details of what was occurring.

PO Callinan testified that he did not witness the interaction between Sgt. Pomerantz and PO Barrett because he had walked away to investigate another possible suspect.

Video footage of the incident was recovered from a commercial building at § 87(2)(b) (BR01, 11). The video shows Sgt. Pomerantz initiating the stop of § 87(2)(b) and walking with him alongside a newsstand that is beside them. A clip of this incident is included below (BR12). Sgt. Pomerantz is in front of § 87(2)(b) and obstructs him from the camera's view. It is unclear what is happening between Sgt. Pomerantz and § 87(2)(b) due to the distance of the camera, the lighting conditions, and apparent rain water that was on the camera lens. Both § 87(2)(b) and Sgt. Pomerantz are seen moving around, though their specific actions cannot be deciphered. One of § 87(2)(b)'s arms swings to the right just before he is taken to the ground.



201801182_20180503_1125_DM.mp4

Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances (BR13).

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **unsubstantiated**.

Allegation D – Abuse of Authority: Police Officer Daniel Callinan frisked § 87(2)(b)

Allegation E – Abuse of Authority: Police Officer Daniel Callinan searched § 87(2)(b)

§ 87(2)(b) testified he was handcuffed on the ground, picked up, and taken next to an unmarked car that was in the street. Sgt. Pomerantz told PO Callinan, who had not previously been involved in the interaction, that § 87(2)(b) did not have anything on him. PO Callinan proceeded to frisk § 87(2)(b)'s waistline and jacket pockets. PO Callinan searched the inside of § 87(2)(b)'s jacket pockets and pant pockets.

The surveillance footage does not capture this portion of the incident because the view is obstructed by a large truck.

PO Callinan testified that after § 87(2)(b) left the surveillance location he observed him speaking with an unknown individual. Not knowing if this person had any involvement with the drug transaction, PO Callinan followed him to make additional observations. PO Callinan eventually lost sight of him and returned to Sgt. Pomerantz and PO Barrett. When he returned to his police car, § 87(2)(b) was not there. PO Callinan denied frisking, searching, or having any interaction with § 87(2)(b).

Sgt. Pomerantz testified that he was the only person who engaged with § 87(2)(b) after he was picked up and brought to the car. Sgt. Pomerantz acknowledged searching § 87(2)(b) as described above. PO Callinan did not frisk or search § 87(2)(b). Sgt. Pomerantz did not remember any interaction between § 87(2)(b) and PO Callinan.

PO Barrett testified that she was standing to the side of the car while Sgt. Pomerantz was speaking with § 87(2)(b) and was not involved in what was happening. She did not recall if § 87(2)(b) was searched or frisked by anyone.

§ 87(2)(g)

Therefore, it is recommended that **Allegations D and E** be closed as **unsubstantiated**.

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first complaint filed by § 87(2)(b) with the CCRB (BR14).
- Sgt. Pomerantz has been a member of the service for nine years and has one prior substantiated allegation. In CCRB case 201200816, the Board substantiated a frisk allegation, recommended charges, and instructions resulted from the APU proceedings. Sgt. Pomerantz' CCRB history contains two prior stop allegations and two prior search of person allegations which were closed by the Board as complainant uncooperative and complainant unavailable. His history also contains three prior physical force allegations which were closed as complainant uncooperative in case 201012515 and unsubstantiated in case 201116089.
- PO Callinan has been a member of the service for ten years and has five prior substantiated allegations. In case 201610382, the Board substantiated two stop allegations, a retaliatory arrest allegation, and a retaliatory summons allegation, requested

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Command Discipline A for all, and the NYPD has not disposed of these allegations. In case 201200276 the Board substantiated a physical force allegation, recommended charges, was found not guilty at APU trial, and received no penalty.

Mediation, Civil and Criminal Histories

- This complaint was suitable for mediation and it was offered to § 87(2)(b) during his interview. § 87(2)(b) chose to have the complaint investigated.
- The NYC Comptroller's Office responded to a request indicating that no notice of claim has been filed regarding this incident (BR15).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 5

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date